



Bill Number: S.B. 1213

Miranda Floor Amendment

Reference to: printed bill

Amendment drafted by: Molly Graver

FLOOR AMENDMENT EXPLANATION

1. Requires each law enforcement agency in Arizona to adopt a written policy that:
 - a) requires all peace officers to visibly display the officer's name or badge number, or both, when performing law enforcement duties; and
 - b) prohibits all peace officers from performing law enforcement duties while wearing a facial covering that conceals the officer's identity.
2. Provides specific exemptions to the requirements of both of these written policies.
3. Classifies performing law enforcement duties in violation of these written policies as assault, or unlawful imprisonment, as outlined.
4. Stipulates that a peace officer who violates these written policies and who commits assault or unlawful imprisonment may not assert any privilege or immunity for the peace officer's conduct.
5. Subjects a peace officer who violates these requirements to civil liability to the injured person in an amount of \$10,000, or actual damages, whichever is greater.
6. Expands the criminal classifications of impersonating a public servant and impersonating a peace officer by including the fraudulent display of government employee identification.
7. Outlines what is considered to be a facial covering.

MIRANDA FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1213
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 11-1051, Arizona Revised Statutes, is amended to
3 read:

4 11-1051. Cooperation and assistance in enforcement of
5 immigration laws; indemnification

6 A. ~~No~~ AN official or agency of this state or a county, city, town
7 or other political subdivision of this state may NOT limit or restrict the
8 enforcement of federal immigration laws to less than the full extent
9 ~~permitted~~ ALLOWED by federal law.

10 B. For any lawful stop, detention or arrest made by a law
11 enforcement official or a law enforcement agency of this state or a law
12 enforcement official or a law enforcement agency of a county, city, town
13 or other political subdivision of this state in the enforcement of any
14 other law or ordinance of a county, city or town or this state where
15 reasonable suspicion exists that the person is an alien and is unlawfully
16 present in the United States, a reasonable attempt shall be made, when
17 practicable, to determine the immigration status of the person, except if
18 the determination may hinder or obstruct an investigation. Any person who
19 is arrested shall have the person's immigration status determined before
20 the person is released. The person's immigration status shall be verified
21 with the federal government pursuant to 8 United States Code section
22 1373(c). A law enforcement official or agency of this state or a county,
23 city, town or other political subdivision of this state may not consider
24 race, color or national origin in implementing the requirements of this
25 subsection except to the extent ~~permitted~~ ALLOWED by the United States or
26 Arizona Constitution. A person is presumed to not be an alien who is
27 unlawfully present in the United States if the person provides to the law
28 enforcement officer or agency any of the following:

1 1. A valid Arizona driver license.

2 2. A valid Arizona nonoperating identification license.

3 3. A valid tribal enrollment card or other form of tribal
4 identification.

5 4. If the entity requires proof of legal presence in the United
6 States before issuance, any valid United States federal, state or local
7 government issued identification.

8 C. If an alien who is unlawfully present in the United States is
9 convicted of a violation of state or local law, ~~on discharge from~~
10 ~~imprisonment or on the assessment of any monetary obligation that is~~
11 ~~imposed~~, THE COURT SHALL IMMEDIATELY NOTIFY the United States immigration
12 and customs enforcement or the United States customs and border protection
13 ~~shall be immediately notified~~. IF AN ALIEN WHO IS UNLAWFULLY PRESENT IN
14 THE UNITED STATES IS DISCHARGED FROM IMPRISONMENT OR IS ASSESSED A
15 MONETARY OBLIGATION, THE AGENCY OF THIS STATE OR THE COUNTY, CITY, TOWN OR
16 OTHER POLITICAL SUBDIVISION OF THIS STATE THAT DISCHARGES THE ALIEN OR
17 ASSESSES THE MONETARY OBLIGATION SHALL IMMEDIATELY NOTIFY THE UNITED
18 STATES IMMIGRATION AND CUSTOMS ENFORCEMENT OR THE UNITED STATES CUSTOMS
19 AND BORDER PROTECTION.

20 D. Notwithstanding any other law, a law enforcement agency may
21 securely transport an alien who the agency has received verification is
22 unlawfully present in the United States and who is in the agency's custody
23 to a federal facility in this state or to any other point of transfer into
24 federal custody that is outside the jurisdiction of the law enforcement
25 agency. A law enforcement agency shall obtain judicial authorization
26 before securely transporting an alien who is unlawfully present in the
27 United States to a point of transfer that is outside of this state.

28 E. In the implementation of this section, an alien's immigration
29 status may be determined by:

30 1. A law enforcement officer who is authorized by the federal
31 government to verify or ascertain an alien's immigration status.

32 2. The United States immigration and customs enforcement or the
33 United States customs and border protection pursuant to 8 United States
34 Code section 1373(c).

35 F. Except as provided in federal law, officials or agencies of this
36 state and counties, cities, towns and other political subdivisions of this
37 state may not be prohibited or ~~in any way be~~ restricted from sending,
38 receiving or maintaining information relating to the immigration status,
39 lawful or unlawful, of any individual or exchanging that information with
40 any other federal, state or local governmental entity for the following
41 official purposes:

42 1. Determining eligibility for any public benefit, service or
43 license provided by any federal, state, local or other political
44 subdivision of this state.

45 2. Verifying any claim of residence or domicile if determination of
46 residence or domicile is required under the laws of this state or a

1 judicial order issued pursuant to a civil or criminal proceeding in this
2 state.

3 3. If the person is an alien, determining whether the person is in
4 compliance with the federal registration laws prescribed by title II,
5 chapter 7 of the federal immigration and nationality act.

6 4. Pursuant to 8 United States Code section 1373 and 8 United
7 States Code section 1644.

8 G. This section does not implement, authorize or establish ~~and~~
9 ~~shall not be construed to implement, authorize or establish~~ the REAL ID
10 act of 2005 (P.L. 109-13, division B; 119 Stat. 302), including the use of
11 a radio frequency identification chip.

12 H. A person who is a legal resident of this state may bring an
13 action in superior court to challenge any official or agency of this state
14 or a county, city, town or other political subdivision of this state that
15 adopts or implements a policy that limits or restricts the enforcement of
16 federal immigration laws, including 8 United States Code sections 1373 and
17 1644, to less than the full extent ~~permitted~~ **ALLOWED** by federal law. If
18 there is a judicial finding that an entity has violated this section, the
19 court shall order that the entity pay a civil penalty of ~~not less than~~
20 ~~five hundred dollars~~ **AT LEAST \$500** and not more than ~~five thousand dollars~~
21 **\$5,000** for each day that the policy has remained in effect after the
22 filing of an action pursuant to this subsection.

23 I. A court shall collect the civil penalty prescribed in subsection
24 H of this section and remit the civil penalty to the state treasurer for
25 deposit in the gang and immigration intelligence team enforcement mission
26 fund established by section 41-1724.

27 J. The court may award court costs and reasonable attorney fees to
28 any person or any official or agency of this state or a county, city, town
29 or other political subdivision of this state that prevails by an
30 adjudication on the merits in a proceeding brought pursuant to this
31 section.

32 K. Except in relation to matters in which the officer is adjudged
33 to have acted in bad faith, a law enforcement officer is indemnified by
34 the law enforcement officer's agency against reasonable costs and
35 expenses, including attorney fees, incurred by the officer in connection
36 with any action, suit or proceeding brought pursuant to this section in
37 which the officer may be a defendant by reason of the officer being or
38 having been a member of the law enforcement agency.

39 L. This section shall be implemented in a manner consistent with
40 federal laws regulating immigration, protecting the civil rights of all
41 persons and respecting the privileges and immunities of United States
42 citizens.

43 Sec. 2. Section 13-901, Arizona Revised Statutes, is amended to
44 read:

45 13-901. **Probation**

46 A. If a person who has been convicted of an offense is eligible for
47 probation, the court may suspend the imposition or execution of sentence

1 and, if so, shall without delay place the person on intensive probation
2 supervision pursuant to section 13-913 or supervised or unsupervised
3 probation on such terms and conditions as the law requires and the court
4 deems appropriate, including participation in any programs authorized in
5 title 12, chapter 2, article 11. If a person is not eligible for
6 probation, imposition or execution of sentence shall not be suspended or
7 delayed. If the court imposes probation, it may also impose a fine as
8 authorized by chapter 8 of this title. If probation is granted the court
9 shall impose a condition that the person waive extradition for any
10 probation revocation procedures and it shall order restitution pursuant to
11 section 13-603, subsection C where there is a victim who has suffered
12 economic loss. When granting probation to an adult the court, as a
13 condition of probation, shall assess a monthly fee of not less than \$65
14 unless, after determining the inability of the probationer to pay the fee,
15 the court assesses a lesser fee. This fee is not subject to any
16 surcharge. In justice and municipal courts the fee shall only be assessed
17 when the person is placed on supervised probation. For persons placed on
18 probation in the superior court, the fee shall be paid to the clerk of the
19 superior court and the clerk of the court shall pay all monies collected
20 from this fee to the county treasurer for deposit in the adult probation
21 services fund established by section 12-267. For persons placed on
22 supervised probation in the justice court, the fee shall be paid to the
23 justice court and the justice court shall transmit all of the monies to
24 the county treasurer for deposit in the adult probation services fund
25 established by section 12-267. For persons placed on supervised probation
26 in the municipal court, the fee shall be paid to the municipal court. The
27 municipal court shall transmit all of the monies to the city treasurer who
28 shall transmit the monies to the county treasurer for deposit in the adult
29 probation services fund established by section 12-267. Any amount
30 assessed pursuant to this subsection shall be used to supplement monies
31 used for the salaries of adult probation and surveillance officers and for
32 support of programs and services of the superior court adult probation
33 departments.

34 B. The period of probation shall be determined according to section
35 13-902, except that if a person is released pursuant to section 31-233,
36 subsection B and community supervision is waived pursuant to section
37 13-603, subsection K, the court shall extend the period of probation by
38 the amount of time the director of the state department of corrections
39 approves for the inmate's temporary release.

40 C. The court, in its discretion, may issue a warrant for the
41 rearrest of the defendant and may modify or add to the conditions or, if
42 the defendant commits an additional offense or violates a condition, may
43 revoke probation in accordance with the Arizona rules of criminal
44 procedure at any time before the expiration or termination of the period
45 of probation. If the court revokes the defendant's probation and the
46 defendant is serving more than one probationary term concurrently, the

1 court may sentence the person to terms of imprisonment to be served
2 consecutively.

3 D. At any time during the probationary term of the person released
4 on probation, any probation officer, without warrant or other process and
5 at any time until the final disposition of the case, may rearrest any
6 person and bring the person before the court.

7 E. The court, on its own initiative or on application of the
8 probationer, after notice and an opportunity to be heard for the
9 prosecuting attorney and, on request, the victim, may terminate the period
10 of probation or intensive probation and discharge the defendant at a time
11 earlier than that originally imposed if in the court's opinion the ends of
12 justice will be served and if the conduct of the defendant on probation
13 warrants it.

14 F. When granting probation the court may require that the defendant
15 be imprisoned in the county jail at whatever time or intervals,
16 consecutive or nonconsecutive, the court shall determine, within the
17 period of probation, as long as the period actually spent in confinement
18 does not exceed one year or the maximum period of imprisonment allowed
19 under chapter 7 of this title, whichever is the shorter.

20 G. If the defendant is placed on lifetime probation and has served
21 one year in the county jail as a term of probation, the court may require
22 that the defendant be additionally imprisoned in the county jail at
23 whatever time or intervals, consecutive or nonconsecutive, the court shall
24 determine, within the period of probation if the defendant's probation is
25 revoked by the court and the defendant is subsequently reinstated on
26 probation. The period actually spent in confinement as a term of being
27 reinstated on probation shall not exceed one year or, when including the
28 initial one-year period of incarceration imposed as a term of probation,
29 the maximum period of imprisonment allowed under chapter 7 of this title,
30 whichever is shorter.

31 H. If restitution is made a condition of probation, the court shall
32 fix the amount of restitution and the manner of performance pursuant to
33 chapter 8 of this title.

34 I. When granting probation, the court shall set forth at the time
35 of sentencing and on the record the factual and legal reasons in support
36 of each sentence.

37 J. If the defendant meets the criteria set forth in section
38 13-901.01 or 13-3422, the court may place the defendant on probation
39 pursuant to either section. If a defendant is placed on probation
40 pursuant to section 13-901.01 or 13-3422, the court may impose any term of
41 probation that is authorized pursuant to this section and that is not in
42 violation of section 13-901.01.

43 K. If the court imposes a term of probation, the court may require
44 the defendant to report to a probation officer. The court or the
45 defendant's probation officer may allow the defendant to fulfill a
46 reporting requirement through remote reporting. The probation officer
47 shall take into consideration and make accommodations for the

1 probationer's work schedule, family caregiver obligations, substance abuse
2 treatment or recovery program, mental health treatment, transportation
3 availability and medical care requirements before setting the reporting
4 time and location requirements for the probationer.

5 L. If a probationer makes a written request to the supervising
6 probation department to courtesy transfer the probationer's intensive
7 probation supervision or supervised probation to another county in this
8 state with the intent to reside in that county and provides proof of
9 family caregiver obligations, employment or housing, or an offer of
10 employment or housing that will assist in the probationer's positive
11 behavioral change, the supervising probation department shall do all of
12 the following:

13 1. Confirm the details of the probationer's employment, housing or
14 family caregiving plans.

15 2. Review any victim safety concerns and ensure compliance with the
16 victims' bill of rights.

17 3. Submit the request for permission to proceed to the receiving
18 county within seven business days after receipt.

19 M. After verifying the information submitted by the sending
20 probation department pursuant to subsection L of this section, the
21 receiving probation department shall provide the sending probation
22 department with permission for the probationer to proceed to the receiving
23 county within seven business days after receipt unless the receiving
24 probation department finds the basis for the plan is not factual or the
25 transfer will endanger the victim.

26 N. If a probationer's intensive probation supervision or supervised
27 probation is courtesy transferred to another county pursuant to subsection
28 L of this section and the probationer subsequently violates the terms of
29 the probationer's probation or commits an additional offense while on
30 probation, the probation department in the county in which the probation
31 violation or additional offense occurred may not return the probationer's
32 intensive probation supervision or supervised probation back to the county
33 in which the probationer's probation was originally imposed except for
34 revocation hearings or an order of the court.

35 O. NOTWITHSTANDING ANY OTHER LAW, IF THE PERSON IS AN ALIEN WHO IS
36 UNLAWFULLY PRESENT IN THE UNITED STATES AND WHO IS CONVICTED OF A
37 VIOLATION OF STATE OR LOCAL LAW:

38 1. THE ALIEN IS NOT ELIGIBLE FOR PROBATION.

39 2. THE COURT SHALL IMMEDIATELY NOTIFY THE UNITED STATES IMMIGRATION
40 AND CUSTOMS ENFORCEMENT OR THE UNITED STATES CUSTOMS AND BORDER PROTECTION
41 AS PRESCRIBED BY SECTION 11-1051.

42 P. IN THE ENFORCEMENT OF SUBSECTION O OF THIS SECTION, AN ALIEN'S
43 IMMIGRATION STATUS MAY BE DETERMINED BY:

44 1. A LAW ENFORCEMENT OFFICER WHO IS AUTHORIZED BY THE FEDERAL
45 GOVERNMENT TO VERIFY OR ASCERTAIN AN ALIEN'S IMMIGRATION STATUS.

1 2. THE UNITED STATES IMMIGRATION AND CUSTOMS ENFORCEMENT OR THE
2 UNITED STATES CUSTOMS AND BORDER PROTECTION PURSUANT TO 8 UNITED STATES
3 CODE SECTION 1373(c).

4 <<Section 3. Section 13-1203, Arizona Revised Statutes, is amended
5 to read:

6 13-1203. Assault; classification

7 A. A person commits assault by:

8 1. Intentionally, knowingly or recklessly causing any physical
9 injury to another person; or

10 2. Intentionally placing another person in reasonable apprehension
11 of imminent physical injury; or

12 3. Knowingly touching another person with the intent to injure,
13 insult or provoke such person[; OR

14 4. PERFORMING LAW ENFORCEMENT DUTIES AS A PEACE OFFICER IN
15 VIOLATION OF THE WRITTEN POLICY REQUIRED BY SECTION 13-2411 OR 13-2415].

16 B. Assault committed intentionally or knowingly pursuant to
17 subsection A, paragraph 1 [OR 4] is a class 1 misdemeanor. Assault
18 committed recklessly pursuant to subsection A, paragraph 1 [OR 4] is a
19 class 2 misdemeanor. Assault committed pursuant to subsection A,
20 paragraph 2 or 3 is a class 3 misdemeanor.>>

21 <<Sec. 4. Section 13-1303, Arizona Revised Statutes, is amended to
22 read:

23 13-1303. Unlawful imprisonment; classification; definition

24 A. A person commits unlawful imprisonment by knowingly restraining
25 another person.

26 B. In any prosecution for unlawful imprisonment, it is a defense
27 that:

28 1. The restraint was accomplished by a peace officer or detention
29 officer acting in good faith in the lawful performance of ~~[his]~~ [THE
30 OFFICER'S] duty [AND IN COMPLIANCE WITH THE WRITTEN POLICIES REQUIRED BY
31 SECTIONS 13-2411 AND 13-2415]; or

32 2. The defendant is a relative of the person restrained and the
33 defendant's sole intent is to assume lawful custody of that person and the
34 restraint was accomplished without physical injury.

35 C. Unlawful imprisonment is a class 6 felony unless the victim is
36 released voluntarily by the defendant without physical injury in a safe
37 place before arrest in which case it is a class 1 misdemeanor.

38 D. For the purposes of this section, "detention officer" means a
39 person other than an elected official who is employed by a county, city or
40 town and who is responsible for the supervision, protection, care, custody
41 or control of inmates in a county or municipal correctional institution.
42 Detention officer does not include counselors or secretarial, clerical or
43 professionally trained personnel.>>

1 <<Sec. 5. Section 13-2406, Arizona Revised Statutes, is amended to
2 read:

3 13-2406. Impersonating a public servant: classification:
4 definition

5 A. A person commits impersonating a public servant if such person
6 pretends to be a public servant and engages in any conduct[, INCLUDING THE
7 FRAUDULENT DISPLAY OF GOVERNMENT EMPLOYEE IDENTIFICATION.] with the intent
8 to induce another to submit to his pretended official authority or to rely
9 on his pretended official acts.

10 B. It is [~~not~~] [NOT A] defense to a prosecution under this section
11 that the office the person pretended to hold did not in fact exist or that
12 the pretended office did not in fact possess the authority claimed for it.

13 C. Impersonating a public servant is a class 1 misdemeanor.

14 D. For the purposes of this section, "public servant" includes a
15 notary public.>>

16 <<Sec. 6. Section 13-2411, Arizona Revised Statutes, is amended to
17 read:

18 13-2411. Peace officer identification required; written
19 policy; exceptions; impersonating a peace officer;
20 classification; definition

21 [A. EACH AGENCY OF THIS STATE OR A POLITICAL SUBDIVISION OF THIS
22 STATE THAT EMPLOYS ONE OR MORE PEACE OFFICERS SHALL ADOPT A WRITTEN POLICY
23 REQUIRING THAT ALL PEACE OFFICERS WHO ARE EMPLOYED BY THE AGENCY VISIBLY
24 DISPLAY IDENTIFICATION THAT INCLUDES THE AGENCY NAME AND THE PEACE
25 OFFICER'S NAME OR BADGE NUMBER, OR BOTH NAME AND BADGE NUMBER, WHEN
26 PERFORMING LAW ENFORCEMENT DUTIES. THE POLICY MAY ALLOW A PEACE OFFICER
27 TO PERFORM LAW ENFORCEMENT DUTIES WITHOUT VISIBLY DISPLAYING THE
28 IDENTIFICATION ONLY IN THE FOLLOWING CIRCUMSTANCES:

29 1. THE PEACE OFFICER IS ENGAGED IN ACTIVE UNDERCOVER OPERATIONS OR
30 INVESTIGATIVE ACTIVITIES.

31 2. THE PEACE OFFICER IS ENGAGED IN A PLAINCLOTHES OPERATION.

32 3. THE PEACE OFFICER IS WEARING PERSONAL PROTECTIVE OR TACTICAL
33 TEAM EQUIPMENT THAT PREVENTS DISPLAY OF THE IDENTIFICATION.

34 4. THE PEACE OFFICER IS ENGAGED IN PROTECTIVE OPERATIONS INVOLVING
35 ELECTED OFFICIALS OR OTHER DIGNITARIES.

36 5. EXIGENT CIRCUMSTANCES INVOLVING AN IMMINENT DANGER TO PERSONS OR
37 PROPERTY, THE ESCAPE OF A PERPETRATOR OR THE DESTRUCTION OF EVIDENCE
38 EXIST, INCLUDING SITUATIONS WHERE THE PEACE OFFICER IS RESPONDING TO THE
39 EXIGENT CIRCUMSTANCES WHILE OFF DUTY.

40 6. THERE IS A SPECIFIC, ARTICULABLE AND PARTICULARIZED REASON TO
41 BELIEVE IDENTIFICATION WOULD POSE A SIGNIFICANT DANGER TO THE PHYSICAL
42 SAFETY OF THE PEACE OFFICER.]

1 ~~[A.]~~ [B.] A person commits impersonating a peace officer if the
2 person, without lawful authority, pretends to be a peace officer and
3 engages in any conduct~~[. INCLUDING THE FRAUDULENT DISPLAY OF GOVERNMENT~~
4 EMPLOYEE IDENTIFICATION.] with the intent to induce another to submit to
5 the person's pretended authority or to rely on the person's pretended
6 acts.

7 ~~[B.]~~ [C.] It is not a defense to a prosecution under this section
8 that the law enforcement agency the person pretended to represent did not
9 in fact exist or that the law enforcement agency the person pretended to
10 represent did not in fact possess the authority claimed for it.

11 [D. A PEACE OFFICER WHO VIOLATES A WRITTEN POLICY ADOPTED PURSUANT
12 TO THIS SECTION AND WHO IS FOUND TO HAVE COMMITTED ASSAULT OR UNLAWFUL
13 IMPRISONMENT MAY NOT ASSERT ANY PRIVILEGE OR IMMUNITY FOR THE PEACE
14 OFFICER'S CONDUCT AGAINST A CLAIM OF CIVIL LIABILITY AND IS LIABLE TO THE
15 PERSON INJURED BY THE PEACE OFFICER'S CONDUCT IN THE AMOUNT OF \$10,000 OR
16 ACTUAL DAMAGES, WHICHEVER IS GREATER.]

17 ~~[C.]~~ [E.] Impersonating a peace officer is a class 6 felony,
18 except that impersonating a peace officer during the commission of any of
19 the following felonies is a class 4 felony:

- 20 1. Negligent homicide.
- 21 2. Manslaughter.
- 22 3. First degree murder.
- 23 4. Second degree murder.
- 24 5. Assault.
- 25 6. Aggravated assault.
- 26 7. Sexual assault.
- 27 8. Violent sexual assault.
- 28 9. Sexual abuse.
- 29 10. Unlawfully administering intoxicating liquors, narcotic drugs or
30 dangerous drugs.
- 31 11. Attack by a person's vicious animal as prescribed in section
32 13-1208.
- 33 12. Drive by shooting.
- 34 13. Discharging a firearm at a structure.
- 35 14. Aggravated criminal damage.
- 36 15. Theft.
- 37 16. Theft by extortion.
- 38 17. Theft of a credit card or obtaining a credit card by fraudulent
39 means.
- 40 18. Misconduct involving weapons.
- 41 19. Misconduct involving explosives.
- 42 20. Depositing explosives.
- 43 21. Procuring or placing persons in a house of prostitution.
- 44 22. Dangerous crimes against children as prescribed in section
45 13-705.
- 46 23. Burglary.
- 47 24. Arson.

1 25. Kidnapping.

2 26. Robbery.

3 ~~[D.]~~ [F.] For the purposes of this section, "peace officer" has the
4 same meaning prescribed in section 1-215 and includes any federal law
5 enforcement officer or agent who has the power to make arrests pursuant to
6 federal law.>>

7 <<Sec. 7. Title 13, chapter 24, Arizona Revised Statutes, is
8 amended by adding section 13-2415, to read:

9 13-2415. Peace officers; masks; written policy; prohibition;
10 definitions

11 [A. EACH AGENCY OF THIS STATE OR A POLITICAL SUBDIVISION OF THIS
12 STATE THAT EMPLOYS ONE OR MORE PEACE OFFICERS SHALL ADOPT A WRITTEN POLICY
13 THAT PROHIBITS EACH PEACE OFFICER WHO IS EMPLOYED BY THE AGENCY FROM
14 WEARING A FACIAL COVERING THAT CONCEALS OR OBSCURES THE PEACE OFFICER'S
15 FACIAL IDENTITY WHEN PERFORMING LAW ENFORCEMENT DUTIES. THE POLICY MAY
16 ALLOW A PEACE OFFICER TO PERFORM LAW ENFORCEMENT DUTIES WITH A FACIAL
17 COVERING ONLY IN THE FOLLOWING CIRCUMSTANCES:

18 1. THE PEACE OFFICER IS ENGAGED IN ACTIVE UNDERCOVER OPERATIONS.

19 2. THE PEACE OFFICER IS ENGAGED IN A TACTICAL OPERATION WHERE
20 PROTECTIVE GEAR IS REQUIRED FOR THE PHYSICAL SAFETY OF THE PEACE OFFICER.

21 3. TO PROTECT THE PEACE OFFICER'S IDENTITY DURING A COURT
22 PROCEEDING.

23 4. THE PEACE OFFICER IS WEARING PERSONAL PROTECTIVE EQUIPMENT
24 ALLOWED OR REQUIRED UNDER APPLICABLE OCCUPATIONAL HEALTH AND SAFETY OR
25 REASONABLE ACCOMMODATION LAWS.

26 B. A PEACE OFFICER WHO VIOLATES A WRITTEN POLICY ADOPTED PURSUANT
27 TO THIS SECTION AND WHO IS FOUND TO HAVE COMMITTED ASSAULT OR UNLAWFUL
28 IMPRISONMENT MAY NOT ASSERT ANY PRIVILEGE OR IMMUNITY FOR THE PEACE
29 OFFICER'S CONDUCT AGAINST A CLAIM OF CIVIL LIABILITY AND IS LIABLE TO THE
30 PERSON INJURED BY THE PEACE OFFICER'S CONDUCT IN THE AMOUNT OF \$10,000 OR
31 ACTUAL DAMAGES, WHICHEVER IS GREATER.

32 C. FOR THE PURPOSES OF THIS SECTION:

33 1. "FACIAL COVERING":

34 (a) MEANS AN OPAQUE MASK, GARMENT, HELMET, HEADGEAR OR OTHER ITEM
35 THAT CONCEALS OR OBSCURES THE FACIAL IDENTITY OF AN INDIVIDUAL, INCLUDING
36 A BALACLAVA, TACTICAL MASK, GATOR OR SKI MASK.

37 (b) DOES NOT INCLUDE ANY OF THE FOLLOWING:

38 (i) A TRANSLUCENT FACE SHIELD OR CLEAR MASK THAT DOES NOT CONCEAL A
39 PEACE OFFICER'S FACIAL IDENTITY AND THAT IS USED IN COMPLIANCE WITH THE
40 AGENCY'S WRITTEN POLICY.

41 (ii) A MEDICAL MASK OR SURGICAL MASK THAT IS USED TO PROTECT
42 AGAINST TRANSMISSION OF DISEASE OR INFECTION.

43 (iii) A MASK, HELMET OR DEVICE, INCLUDING AN AIR PURIFYING
44 RESPIRATOR, FULL OR HALF MASK OR SELF-CONTAINED BREATHING APPARATUS, THAT
45 IS NECESSARY TO PROTECT AGAINST EXPOSURE TO ANY TOXIN, GAS, SMOKE,
46 INCLEMENT WEATHER OR OTHER HAZARDOUS OR HARMFUL ENVIRONMENTAL CONDITION.

1 (iv) A MASK, HELMET OR DEVICE, INCLUDING A SELF-CONTAINED BREATHING
2 APPARATUS, THAT IS NECESSARY FOR UNDERWATER USE.
3 (v) A MOTORCYCLE HELMET WHEN WORN BY A PEACE OFFICER USING A
4 MOTORCYCLE OR OTHER VEHICLE THAT REQUIRES A HELMET FOR SAFE OPERATIONS
5 WHILE IN THE PERFORMANCE OF LAW ENFORCEMENT DUTIES.
6 (vi) EYEWEAR THAT IS NECESSARY TO PROTECT FROM THE USE OF RETINAL
7 WEAPONS, INCLUDING LASERS.
8 2. "PEACE OFFICER" HAS THE SAME MEANING PRESCRIBED IN SECTION 1-215
9 AND INCLUDES ANY FEDERAL LAW ENFORCEMENT OFFICER OR AGENT WHO HAS THE
10 POWER TO MAKE ARRESTS PURSUANT TO FEDERAL LAW.]>>

11 Enroll and engross to conform

12 Amend title to conform

CATHERINE MIRANDA

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